

23STCV17413 23STCV17413

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-10

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Case Number: 23STCV17413 Hearing Date: September 10, 2026 Dept: 512

HEARING DATE: Thurs.,

September 10, 2026 JUDGE/DEPT: Mkrtchyan/512

CASE NAME: Lu v. Yang, et al. COMP FILED: 07-25-23

CASE NUMBER: 23STCV17413 FAC FILED: 03-07-24

NOTICE: NO

PROCEEDINGS: MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT
PURSUANT TO CCP 664.6

MOVING PARTY: Plaintiff

Yi Ping Lu

RESP. PARTY: None

ENTER JUDGMENT PURSUANT TO STIPULATION

(CCP § 664.6)

TENTATIVE RULING:

Plaintiff Yi Ping Lu's unopposed

Motion to Enter Judgment Pursuant to Code of Civil Procedure section 664.6 is

CONTINUED to Monday, October 12, 2026 at 9:00 a.m. in Department 512 of the

Stanley Mosk Courthouse.

At least 16 court days prior to the next scheduled hearing, Plaintiff is to file and serve supplemental papers addressing the deficiencies noted herein.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely
Filed (CRC, rule 3.1300) OK

☐
☐ Correct Address (CCP §§ 1013, 1013a) NO

☒ 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of September 7, 2026 ☐
Late ☒ None

REPLY: None filed as of September 7, 2026 ☐ Late ☒ None

ANALYSIS:

I.
Background

On July 25, 2023, Plaintiff Yi Ping Lu ("Plaintiff") filed the instant action against Defendants Lin Yang aka Anthony Wang ("Wang"); Wenfeng Zhang; Kundi Li; and Yu Di Xiong and Does 1-30.

On March 7, 2024, Plaintiff filed a First Amended Complaint ("FAC") against Yang ("Defendant") and Does 1-20, alleging causes of action for Breach of Contract, Intentional Misrepresentation, and Negligent Misrepresentation.

On December 10, 2024, Plaintiff filed a Notice of Unconditional Settlement of Entire Case.

On December 12, 2024, Defendant filed a Notice of Substitution of Attorney stating that Defendant is proceeding pro per.

On December 13, 2024, the Court stated it will retain jurisdiction over the parties pursuant to Code of Civil Procedure section 664.6 even after dismissal of this matter. (12/13/24 Stip. & Order.)

On December 16, 2024, the entire action was dismissed without prejudice.

On June 30, 2026, Plaintiff filed the instant Motion to Enter Judgment Pursuant to Code of Civil Procedure section 664.6 (the "Motion").

To date, no Opposition to the Motion has been filed.

II. Procedural Issues

As an initial matter, the Court finds there is a discrepancy in the Motion's proof of service – the Motion states Defendant was served with the Motion by first class mail only at "1646 Woods Drive, Los Angeles CA 90069"; however, Defendant's address listed in the 12/12/24 Substitution of Attorney Form is "1600 Sunset Plaza Dr., Los Angeles, CA 90069" (the "Sunset Plaza Address").

While the Court acknowledges a declaration of due diligence also accompanies the Motion's proof of service, the Court does not find that the Sunset Plaza Address is listed in the declaration of due diligence either. Further, Plaintiff's supplemental declaration filed in support of the Motion stating that Plaintiff believes Defendant is in actual receipt of the Motion from the parties' communication on "WeChat" does not demonstrate legally adequate service of the Motion and notice of hearing.

The Court may not rule on the Motion

absent proper service and notice of hearing.

Furthermore,

the Court notes that Plaintiff's counsel fails to provide evidence demonstrating how Plaintiff's counsel incurred \$2,500 to enforce the Stipulation, such as Plaintiff's counsel's hours incurred and hourly billing rate.

Thus,

the Motion is CONTINUED to allow Plaintiff an opportunity to address the deficiencies noted herein.

III.

Conclusion & Order

Plaintiff Yi Ping Lu's unopposed

Motion to Enter Judgment Pursuant to Code of Civil Procedure section 664.6 is CONTINUED to Monday, October 12, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

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Moving party is ordered to give notice.